

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

**STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,**

Petitioner,

vs.

**Aimeé Howard,
LPC, LICENSE NO. 1828**

Respondent.

)
)
)
)
)
)
)
)
)
)
)
)

Complaint No. 18-LPC-93

CONSENT ORDER

COMES NOW the State of Oklahoma, ex rel, the State Board of Behavioral Health Licensure (“the Board”) by and through its attorney, Liz Stevens, Assistant Attorney General, and Aimeé Howard, (“Respondent”), and hereby enter into this Consent Order, pursuant to 59 O.S. §1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. §309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 1828 and was licensed on or about April 27, 1998.
2. Respondent became an Approved Supervisor on or about May 11, 2009. Her supervisor status expired on June 30, 2019 and has not been renewed.
3. Respondent was the Approved Supervisor for applicant Kevin Shavor (“Shavor”) for

approximately six (6) months during the beginning of 2012.

4. On September 26, 2018, a Request for Inquiry (“RFI”) was filed with the Board against the Respondent alleging that Respondent engaged in a sexual relationship with Shavor while acting as his supervisor.

5. On February 14, 2019, Respondent was interviewed and admitted to being intimate with Shavor for approximately four (4) of the six (6) months she was his supervisor. Respondent indicated that she ended the relationship with Shavor because she realized it was inappropriate and that she has been in counseling for the past several years.

6. In order to resolve all issues raised in the Request for Inquiry filed in this matter, as well as all issues raised in the investigation, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.

2. Respondent agrees that she did not comply with the Licensed Professional Counselor Act nor the Oklahoma Administrative Code:

§59-1912. Denial, revocation, suspension or probation of license – Administrative hearing for applicant with felony conviction.

A. The State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has:

5. Engaged in unprofessional conduct as defined by the rules established by the Board;

6. Engaged in negligence or wrongful actions in the performance of his or her duties.

§59-1913.1. Rules and orders - Penalty.

B. 1. Any person who is determined by the Board to have violated any provision of the Licensed Professional Counselors Act, or any rule promulgated or order issued pursuant thereto, may be subject to an administrative penalty.

2. The maximum administrative penalty shall not exceed Ten Thousand Dollars (\$10,000.00).

3. Administrative penalties imposed pursuant to this subsection shall be enforceable in the district courts of this state.

4. All administrative penalties collected shall be deposited into the Licensed Professional Counselors Revolving Fund.

86:10-3-1. Responsibility

It shall be the responsibility of Licensed Professional Counselors (LPCs), in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. LPCs shall accept responsibility for the consequences of their work and make every effort to ensure that their services are used appropriately. LPCs shall be alert to personal, social, organizational, financial, and political situations or pressures that might lead to the misuse of their influence. LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit or misrepresentation. LPCs shall not exploit their relationships with clients for personal advantage, profit, satisfaction, or interest.

86:10-3-4. Professional standards

(c) Sexual conduct.

(2) **Supervisees.** LPCs shall not engage in sexual conduct with supervisees and shall not supervise persons with whom they have had a sexual relationship within the previous five (5) years. LPCs shall not engage in sexual contact with 9 supervisees they have supervised within the previous five (5) years.

86:10-29-14. Administrative penalties

(a) The Board may assess an administrative penalty against an individual if the order includes a finding that the individual:

(1) Violated any provision of the Act, including practicing licensed professional counseling without licensure or exemption; or

(2) Violated any rule within this Chapter; or

(3) Violated any order issued pursuant to this Chapter.

(b) The total amount of the administrative penalty assessed shall not exceed ten thousand dollars (\$10,000.00) for any related series of violation.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent shall not be an Approved Supervisor.
2. Respondent will pay a five thousand (5,000) dollar administrative penalty. The penalty must be paid in full within six (6) months from the issuance of this Order. One thousand (1,000) dollars is due by the date of issuance of this Order and one thousand (1,000) dollars is due on the seventeenth (17th) of each month until the penalty is paid in full.
3. Respondent will participate in a graduate level Board approved ethics course. To be in compliance with this Order, Respondent will have to provide proof of enrollment within six (6) months of the issuance of this Order and proof of successful completion of the course by December 31, 2021.
2. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.
3. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent, including, but not limited to, the suspension or revocation of Respondent's license.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all

associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board, endorsed by a representative of the Board and been approved by the Oklahoma Office of the Attorney General pursuant to Antitrust Review.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for April ¹⁶~~17~~, 2021. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of her rights to contest the charges pending against her.

Respondent acknowledges these rights include: representation by an attorney at her own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against her; the right to present evidence on her own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on her own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily waives all of these rights.

COMPLETE AGREEMENT

This Consent Order consists of eight (8) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.

Amy Barnett
AMY BARNETT, LPC CC Board Member

Dated this 7 day of April, 2021.

IT IS SO ORDERED.

STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By: Dr. Kelly Collins, LPC, NCC, CCTP
BOARD MEMBER